

The UNGA Resolution on a 'Global Pact for the Environment': A chance to put the horse before the cart

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While the 'Global Pact for the Environment' endorsed by France did not provide a compelling link between its approach and a particular environmental problem, United Nations General Assembly (UNGA) Resolution 72/277 sets out a linear methodological approach by asking a working group to consider whether there are possible 'gaps' in existing environmental law and policy and, if so, to discuss possible options for addressing them. This article discusses the concept of a 'gap', identifies several types of gaps that could be included in the UNGA work and points to possible ways in which such gaps may be filled. It illustrates how States could analyse gaps using four possible cases, including the domestic implementation of international commitments, climate change, substantive environmental rights and ocean plastics. Rather than jumping to pursue an overarching agreement including legally binding principles, the article argues that Resolution 72/277 offers States the opportunity to step back and methodically consider the most important missing pieces in international environmental law and policy, and the best manner and forum to address them.

1 | INTRODUCTION

United Nations General Assembly (UNGA) Resolution 72/277,¹ at least on paper, appears to rectify one of the flaws in the original French proposal for a new international environmental agreement, the 'Global Pact for the Environment'. The draft agreement, endorsed by France,² did not provide a compelling link between its approach and a particular environmental problem, leaving many readers confused and concerned. By contrast, the Resolution sets out a linear methodological approach. It asks a working group to consider whether there are possible 'gaps' in existing environmental law and policy and, if so, to discuss possible options for addressing them. These might include one or more new international instruments. States should take advantage of this opportunity to consider

the issues systematically and non-politically, in the hopes of focusing global effort on key areas in need of strengthened international attention.

2 | THE ORIGINAL FRENCH PROPOSAL

France's proposed 'Global Pact for the Environment' took the form of a legally binding instrument addressing a dizzying array of subjects, including human rights, environmental principles, climate change, the law of war and so on.³

Substantively, the draft text was highly problematic.⁴ It was, among other things, confused about its purpose, misguided in its one-size-fits-all-environmental-issues approach, unclear as to its effect on existing international environmental law and potentially undermining of current agreed environmental principles.

¹UNGA 'Towards a Global Pact for the Environment' UN Doc A/RES/72/277 (10 May 2018) ('Resolution 72/277').

²Speech by M. Emmanuel Macron, President of the Republic: Summit on the Global Pact for the Environment (New York, 19 September 2017) <<https://www.diplomatie.gouv.fr/en/french-foreign-policy/united-nations/events/united-nations-general-assembly-sessions/unga-s-72nd-session/article/speech-by-m-emmanuel-macron-president-of-the-republic-summit-on-the-global-pact>>.

³Draft Global Pact for the Environment' <<http://pactenvironment.emediaweb.fr/wp-content/uploads/2018/11/EN.pdf>>.

⁴S Biniaz, '10 Questions to Ask about the Proposed "Global Pact for the Environment"' (Sabin Center for Climate Change Law 2017) <<http://columbiaclimatelaw.com/files/2017/08/Biniaz-2017-08-Global-Pact-for-the-Environment.pdf>>.

As a matter of process, it was disturbing that the proposal set out a solution – that is, a new, overarching agreement with broad, legally binding principles – without a persuasive case that such an instrument bore any relationship to real-world environmental problems. The proposed Global Pact seemed to be a solution in search of a problem, rather than in response to one.

Also concerning was the opportunity cost of negotiating such an agreement, particularly coming, as it did, on the heels of the 2015 Paris Agreement. Paris left many issues for future resolution and, more broadly, the climate challenge requires ongoing, all-hands-on-deck efforts to enhance ambition. A new instrument without a clear and urgent purpose could easily become a distraction from those and other critical undertakings.

Unfortunately, because of the ambient political atmosphere, in particular the United States' announced withdrawal from the Paris Agreement and general antipathy toward environmental protection, these questions and concerns, also raised by others, remained largely unanswered. Rather, there was an implication that to challenge the Global Pact was to be against the environment or – worse yet – to be on the side of Donald Trump. Fortunately, there was sufficient pushback at the United Nations (UN) to set up a far more rational, step-by-step approach to considering the issues.

3 | THE UNGA RESOLUTION

In contrast to France's 'solution first' approach, the Resolution takes an open-ended approach to the ultimate outcome.

First, it calls on the UN Secretary-General to present a report to the General Assembly identifying and assessing 'possible gaps' in international environmental law and, in order to cover non-legally binding documents, in 'environment-related instruments' as well.⁵ In both cases, the report is to have the view of 'strengthening their implementation'.⁶ While, as discussed below, States may or may not agree with the report on what it characterizes as 'gaps', beginning with the perceived problems is at least a logical methodology.

Second, the Resolution establishes an ad hoc open-ended working group, under UNGA auspices. The group is to 'consider the report' and 'discuss possible options to address possible gaps ... as appropriate'.⁷ It does not restrict the consideration to possible gaps identified in the Secretary-General's report.

Third, the group is asked to discuss, 'if deemed necessary', the scope, parameters and feasibility of an international instrument, with a view to making recommendations to the General Assembly. Such recommendations 'may include' the convening of an intergovernmental conference to adopt an international instrument.⁸

It should be noted that, notwithstanding the title of the Resolution ('Towards a Global Pact for the Environment'), the text does not actually mention a Global Pact. The working group's mandate does not necessarily anticipate agreement on the need for a new 'international instrument' and, even if so, does not specify its form, legal character or name. It does not preclude a multi-pronged outcome to address several issues, as opposed to a single outcome. The Resolution also makes no reference to the original French draft text.

Thus, discussions launched by the Resolution might lead in one of several different directions, for example, a new legally binding instrument covering a single issue or a wide range of topics; a new instrument of a political character aimed at one or more issues; actions (such as increased funding, a campaign or a high-level gathering) not involving a new instrument; a combination of the above; or no action.

4 | WHAT IS A 'GAP'?

As noted, the Resolution calls for a report on 'possible gaps'. The word 'possible' is appropriate, as States may legitimately have different views as to what constitutes a 'gap' in international environmental law or policy (or even whether there are any).⁹

The strongest case for a 'gap' may be when an entire environmental topic has been unaddressed (or sorely under-addressed). For example, at the Rio Earth Summit in 1992, States agreed to negotiate a new convention on desertification, which had not previously been the subject of an international agreement. Whether or not States fully supported that decision, they would likely have considered the issue of desertification to be a 'gap' in international environmental law.

It should be noted, however, that even that conclusion may be controversial. As Dan Bodansky has noted, it may depend upon whether one thinks of a gap as 'descriptive' (something missing) or 'normative' (something missing that should be filled).¹⁰ In the latter case, even the identification of gaps is not a technical exercise, but rather a subjective exercise involving policy, political and/or moral judgements.

In some cases, particularly where there is already an international agreement on a particular subject, a putative 'gap' may reflect an intentional design choice on the part of negotiators of the instrument. The design choice might have been motivated by considerations of substance, politics and/or participation. The choices might have involved, for example, one or more non-legally binding provisions, exceptions to a general rule, provisions that allow a party to opt out of a particular commitment, grace periods or the absence of compliance/enforcement procedures.

⁵Resolution 72/277 (n 1) para 1.

⁶*Ibid.*

⁷*Ibid* para 2.

⁸*Ibid.*

⁹See also D French and L Kotzé, "Towards a Global Pact for the Environment": International Environmental Law's Factual, Technical and (Unmentionable) Normative Gaps' (2019) 28 *Review of European, Comparative and International Environmental Law*.

¹⁰See 'Global Perspectives on a Global Pact for the Environment' (contribution by D Bodansky) (20 September 2018) <<http://blogs.law.columbia.edu/climatechange/2018/09/20/global-perspectives-on-a-global-pact-for-the-environment/>>.

With respect to these cases, many States are likely to consider any particular absence or omission part of the delicate balance that led to an acceptable agreement, rather than a 'gap'. For example, the exclusion of developing country commitments from the Kyoto Protocol would not likely be viewed as a gap, at least not by developing countries. Similarly, countries whose particular situations were accommodated in various agreements are unlikely to think that the applicable provisions are 'gaps', even if, as a factual matter, the accommodations leave certain issues or parties lightly covered or not covered at all. And countries that fought hard for a non-legally binding approach to a particular instrument or provision – or for a light compliance regime – will not be inclined to find the absence of a legally binding commitment – or strict enforcement – to be a 'gap'.

In addition, it is unclear whether a 'gap' relates to the written word or to the environment itself. If the text of an environmental agreement appears to completely cover a subject, but the environmental issue is *de facto* far from being satisfactorily addressed, is that a gap? Conversely, if an agreement appears incomplete *de jure*, yet the environmental issue is being adequately addressed on the ground, is that a gap?

For all of the reasons above, there are bound to be threshold issues concerning the extent to which there are 'gaps' in international environmental law and policy.

5 | TYPES OF GAPS

Setting aside whether States can agree that a particular absence or omission constitutes a 'gap' within the meaning of the Resolution, it is worth considering the different types of gaps that could theoretically exist:

- A gap might relate to *substance*, for instance, the lack of coverage (total or partial) of a particular topic or issue;
- A gap might relate to *legal character*, for instance, the issue is currently addressed in non-legally binding form, whether in a political instrument or within an otherwise legally binding instrument;
- A gap might relate to *parties*, for instance, certain commitments do not apply to particular parties;
- A gap might relate to *geography*, for instance, certain regions are covered, but others are not;
- A gap might relate to *international compliance/enforcement*, for instance, there are relevant commitments, but not strong compliance and/or enforcement procedures;
- A gap might relate to *domestic action*, for instance, international commitments are adequate but there are inadequate commitments to implement or enforce them domestically;
- A gap might relate to *resources*, for instance, developing countries in particular may not have sufficient funding, capacity, etc., to carry out their international commitments;
- A gap might relate to *political will*, for instance, the right international commitments are in place, yet States are not in a political position to implement them;

- Finally, a gap might relate to *institutions*, for instance, a need for one or more mechanisms, organizations or institutions to enhance coordination or other forms of cooperation.

The French proposal for a Global Pact would presumably fall into at least two of these categories, for instance, a substantive gap (e.g. with regard to right(s) to a healthy environment) and a legal character gap (with regard to legally binding environmental principles).

6 | OPTIONS TO ADDRESS GAPS

Assuming States identify one or more gaps in existing international environmental law and policy, they will need to consider options for addressing such gap(s). The options will obviously depend upon the nature of the gap. The threshold question *whether* a gap needs to be addressed will likely depend upon factors such as:

- the environmental significance of the gap;
- the urgency of addressing the gap;
- the probable reasons for the existence of the gap;
- the desirability of addressing the gap; and
- the likelihood of reaching international agreement on how to address the gap (including the extent to which States have previously attempted to address it).

Further, even where States may agree that there is a gap regarding a particular topic – and that it needs to be addressed – States may raise a 'jurisdictional' issue if that gap falls within the scope of an existing international agreement. In other words, given the institutional context of the Resolution, States may consider that it is up to the parties to a particular agreement, rather than the UNGA, to decide whether/how to address any particular gap.

Assuming agreement that a gap needs to be addressed and that it is within the purview of the UNGA to speak to it, recommendations for addressing it may include, for example:

- pursuing an amendment to an existing instrument (if the gap is within, or related to, the scope of an existing agreement or other instrument);
- pursuing a new instrument, whether regional or global, and of either a legal or non-legal nature;
- pursuing action that does not require either a new or amended instrument (such as increased funding to one or more existing international financial institutions or increasing international attention through a summit, dialogue, etc.); and/or
- pursuing other efforts to promote the efficacy of international environmental law and policy, such as the development of model legislation, increased capacity building for domestic enforcement, etc.

Recommendations should be tailored to the specific environmental problem in question. Further, with respect to a new instrument,

particularly a legally binding one, it would be important for coherence's sake to make clear its relationship, if any, to existing international law. As noted, a key problem with the proposed Global Pact as drafted was the lack of clarity concerning the intended effect of its legally binding principles on the many existing environmental agreements that contain cognate principles (in most cases, carefully formulated to address particular issues), but in non-binding form and with different wording.

7 | FOUR HYPOTHETICAL ILLUSTRATIONS

Taking into account the factors and options above, States might analyse various notional 'gaps' as follows.

7.1 | Domestic implementation of international commitments

States might conclude that the single most significant gap in international environmental law and policy is inadequate domestic implementation. In other words, it may be that the problem is not the dearth of international agreements and commitments but insufficient implementation of existing agreements and commitments at home. Such a focus would be consistent with the Resolution's emphasis on 'strengthening the implementation' of international environmental law and environment-related instruments.

The root causes of the gap might be lack of political will; insufficient resources or capacity, particularly in less developed countries; and/or ineffective domestic enforcement of otherwise adequate laws. In some cases, a State might have joined an international agreement before being in a position to implement the commitments thereunder.

Options for addressing the problem might include, for instance, a high-level UN pronouncement that mobilizes political support; a public awareness campaign that indirectly bolsters political support; increased funding and capacity building for developing countries; and/or a new instrument that focuses on the effective enforcement of domestic environmental laws that implement international environmental commitments (akin to the commitments that accompanied the North American Free Trade Agreement and subsequent US trade agreements).¹¹

7.2 | Response to climate change

It might be suggested that climate change is the overriding environmental challenge of our time and that there are various 'gaps' concerning the international response that need to be addressed. These need to be taken in turn.

First, some may posit, for example, that the Paris Agreement reflects certain deficiencies that need to be addressed. These might include the lack of legally binding emissions targets or the fact that contributions

are 'nationally determined', rather than negotiated. Regardless of their views as to whether legally binding or negotiated targets would strengthen, weaken or not affect the robustness of the global response, many States are likely to consider that the current nature of Paris targets is not a 'gap', but rather a deliberate, integral aspect of the Paris package. Further, in any event, as a matter of process, States may consider that the Paris parties, rather than the UN General Assembly, should be the arbiters of any necessary modifications to the Agreement.

Second, it might be suggested that, in light of the Paris Agreement's goal of keeping global average temperatures to well below 2°C,¹² there is an 'ambition gap', that is, an urgent need for actors at all levels (States, subnational governments, businesses) to enhance their climate-related actions.¹³ Addressing this concern would not require any change to the Paris Agreement; further, the need for greater ambition includes, but extends beyond, the enhancement of nationally determined contributions under the Agreement. Thus, States might determine that the UN should take the necessary steps to call for additional action, including in the context of the UN Secretary-General's 2019 Climate Summit.¹⁴

Third, it may be suggested that there is a 'gap' in terms of global consideration of the nexus between climate change and security. This issue is of significance, is not covered by the Paris Agreement, involves international security and is cross-cutting; as such, States might determine that the UN Security Council is the appropriate forum for addressing it.

7.3 | Substantive environmental rights

It might be suggested, as reflected in the draft Global Pact endorsed by France, that a key gap is the absence of a global agreement setting forth substantive rights related to a clean and/or healthy environment. There is in fact no such agreement; for example, the Aarhus Convention is both regional and focused on procedural rights.¹⁵ The question for States would be whether this is a gap that should be filled and, if so, how.

States are likely to have differing views on the desirability of such a right(s), as well as on its definition, territorial scope and manner of enforceability. They may also consider whether environmental protection at the domestic level would be better strengthened through the incorporation of a general right or the adoption of more specific environmental laws (i.e. ones that are concrete in terms of their implementation and enforcement).

If it were deemed desirable to advance a substantive right to a clean/healthy environment, this could be done through a binding

¹¹See, e.g., the United States–Peru Free Trade Agreement (adopted 12 April 2006, entered into force 1 February 2009) <<https://ustr.gov/trade-agreements/free-trade-agreements/peru-tpa/final-text>>.

¹²Paris Agreement (adopted 12 December 2015, entered into force 4 November 2016) 55 ILM 740 art 2(1)(a).

¹³See, e.g., Intergovernmental Panel on Climate Change (IPCC), *IPCC Special Report on the Impacts of Global Warming of 1.5°C above Pre-industrial Levels and Related Global Greenhouse Gas Emission Pathways, in the Context of Strengthening the Global Response to the Threat of Climate Change, Sustainable Development, and Efforts to Eradicate Poverty* (2018).

¹⁴See <<http://www.un.org/en/climatechange/>>.

¹⁵Convention on Access to Information, Public Participation in Decision-making and Access to Justice in Environmental Matters (adopted 25 June 1998, entered into force 30 October 2001) 2161 UNTS 447.

international agreement (as in the case of, for instance, the International Covenant on Civil and Political Rights), a non-binding instrument (as was the case with, for example, the Universal Declaration of Human Rights) and/or model constitutional provisions reflecting such a right.

7.4 | Ocean plastics

Pollution of the marine environment from plastic litter and microplastics has become a significant issue, both environmentally and policy-wise. The UN Environment Programme's UN Environment Assembly has adopted several resolutions on the subject,¹⁶ and several G7 member States endorsed an Ocean Plastics Charter at the 2018 Summit in Canada.¹⁷

States would correctly note that, while there are regional seas agreements addressing land-based sources of pollution, there is no global agreement specifically on the subject of marine pollution from plastics; further, the current focus on a 'life-cycle' approach to plastics stewardship on land and at sea goes beyond typical ocean-related agreements.

UNEA Resolution 3/7 is reflective of international support for further addressing the ocean plastics issue and, in that sense, indicates that States consider there is a 'gap'. However, because that Resolution already launched a process, including the establishment of an Ad Hoc Working Group that will identify a range of potential responses, States might consider that, institutionally speaking, there is no need for the UN General Assembly to identify options as well. At the same time, the significance of the environmental problem, coupled with the urgency to address it and the fact that it cuts across the mandates of many international agreements and institutions, might argue in favour of additional UN action.

Recommendations might take the form of a recommendation for a binding instrument, a non-binding instrument, efforts to enhance public awareness, partnerships with non-State actors or a combination. A combination might recommend amendments/actions to certain existing instruments (akin to those being considered by Parties to the Basel Convention with respect to trade in plastics) and a new instrument to fill in spaces not otherwise covered.

8 | OTHER OBSERVATIONS

While the UNGA Resolution is a decided step forward from a methodological point of view, it is questionable whether it actually raises the right issue. If one is concerned about the global environment, it is a logical first step to look for gaps in international environmental law and policy. Arguably, however, the better place to look, either instead of or in addition to the international environmental field, may be other fields of international law.

As Maxine Burkett points out,¹⁸ an exclusive focus on international environmental law potentially furthers the compartmentalization of the environment from other fields. This is certainly a concern in the context of climate change. It is quite evident what else needs to be done within the climate regime itself to advance action (e.g. the need for parties to take on progressively more ambitious nationally determined contributions under the Paris Agreement). It is less obvious precisely what is needed in other spheres of international law (e.g. trade) to remove obstacles to climate-related action and even affirmatively promote it.¹⁹

Similarly, with respect to the environment more broadly, it is arguably more urgent to conduct an inventory of *other* fields of international law, policy and practice for their environmental implications than to tidy up discrepancies in international environmental law or even to draw together a set of environmental principles. Reducing fossil fuel subsidies, for example, would yield far greater environmental benefits²⁰ than ensuring that the precautionary principle is stated in the exact same words in all multilateral environmental agreements.

9 | CONCLUDING THOUGHTS

Of all the possible outcomes of the process launched by the UNGA Resolution, I believe that an agreement setting forth legally binding environmental principles would be among the least useful end products – and a potentially damaging one. Even stipulating that such an agreement would fill a descriptive gap, it is not a gap that needs to – or should – be filled.

Some of my criticisms of the French proposal for a 'Global Pact' were specific to its content, for instance, its particular choice of principles and their formulations.²¹ To a certain extent, those types of infirmities could be addressed in the negotiation of a new instrument. However, many of my concerns would be raised by any attempt to spell out legally binding environmental principles.

I remain convinced that international environmental law is not 'incoherent' or 'fragmented' (in any pejorative sense). It is a strength, not a deficiency, of the field that so many different tools and approaches have been employed to address particular problems. In negotiating agreements, striking the right balance between stringency and participation to promote a given objective is never easy, but it has been precisely the various innovations and nuanced approaches that have made this possible in the complex environmental field. One need go no further than the Kigali Amendment to the Montreal Protocol, which used, among other things, five

¹⁶See, e.g., UNEA 'Resolution 3/7, Marine Litter and Microplastics' UN Doc UNEP/EA.3/Res.7 (6 December 2017).

¹⁷See <<https://g7.gc.ca/wp-content/uploads/2018/06/OceanPlasticsCharter.pdf>>.

¹⁸Global Perspectives on a Global Pact for the Environment (n 10) (contribution by M Burkett).

¹⁹See, e.g., S Droege et al, 'The Trade System and Climate Action: Ways Forward under the Paris Agreement' (2016) 13 South Carolina Journal of International Law and Business 195.

²⁰See, e.g., United Nations Environment Programme (UNEP), *Emissions Gap Report 2018* (UNEP 2018) xxii.

²¹Biniiaz (n 4).

different, issue-specific, categories of parties to strike that balance.²² A persuasive case has not been made that a 'unified' approach would be either more 'coherent' or more effective in addressing the vast array of environmental problems.

It is also not clear why, in any event, such an exercise would be a priority for scarce negotiating resources, when there are issues out there crying out for help (including notably climate change and marine plastics).

The fact that there may be an overarching international agreement covering another field is not a compelling argument for its development in the environmental field. International environmental law is distinguishable from other international fields, such as trade or human rights. It includes a huge number of disparate subjects involving every corner of the globe, all manner of human activity, and virtually all living and non-living resources. In this sense, it is not analogous to other fields covering far narrower subject matters, and the fact that there are countless agreements covering the environment speaks not to 'fragmentation' but to the field's vastness and the need to treat different subjects differently.

Further, overarching agreements in other fields generally predated more specific agreements. Developing an all-encompassing agreement *after the fact* is quite a different matter. Such an agreement could not realistically capture the nuances of all the specific instruments that came before it. In addition, it would raise the critical question whether the new agreement's general principles were intended – or not intended – to override specific provisions of existing law/agreements.

The issue of the relationship of a new overarching agreement to existing law/agreements is a critical one. If the intent were to affect existing law and agreements, countless legal issues would arise. If, however, there were no intent to have such an effect (as France reportedly assured delegates during debates on the UNGA Resolution), the purpose of the agreement would be unclear.

The choice of 'principles' to be made legally binding and of general applicability also raises concerns. Were such an agreement to be pursued, there would be at least two conceptual options for what to include. One option would be to take principles that are already considered to apply widely, such as from the Rio Declaration.²³ There, in addition to the question of how they would relate to cognate (but differently worded) principles in various subsequent agreements, there would be a concern about weakening the principles. It is unlikely that States would agree to simply take them as is and make them legally binding. One of the strengths of the Rio Declaration was that, because the principles were not

intended to be legally binding, States were less concerned about including all the caveats and provisos that often attach to provisions of a legal nature. Thus, they could agree on bold sentiments. If principles were made legally binding, there would undoubtedly be trade-offs between their legal character and their underlying content. For example, it is inconceivable that States would agree to take Rio Declaration Principle 8 and simply change 'should' to 'shall' (making it read 'States shall reduce and eliminate unsustainable patterns of production and consumption ...').²⁴ Binding principles are likely to end up either exceedingly bland or riddled with escape hatches.

A second option would be to extract a principle or concept from a specific agreement and make it generally applicable to the entire field. But concepts developed for one purpose do not necessarily lend themselves to others. The version of 'precaution' embodied in the London Protocol on marine dumping – that is, in case of doubt, dumping is prohibited²⁵ – would certainly not work in many other contexts, including climate change. Do the Convention on International Trade in Endangered Species and the International Convention on the Regulation of Whaling reflect an 'opt out' principle that should apply generally? Should the 'nationally determined' approach of the Ramsar Convention and the Paris Agreement apply to all subjects? Even within the climate change context, members of the International Civil Aviation Organization rejected the 'nationally determined' approach of the Paris Agreement for the highly competitive aviation sector.²⁶

An overarching agreement could conceivably take a 'by reference' approach to each issue, for instance, parties shall take steps to protect the ozone layer in accordance with the Montreal Protocol on ozone depletion, as adjusted and amended. However, it is unclear how this would advance environmental protection, unless perhaps it were coupled with enforcement procedures beyond those in the referenced agreements and/or the parties were agreeing to enforce their obligations under such agreements domestically.

UNGA Resolution 72/277 may or may not be headed '[t]owards a Global Pact for the Environment'. It does, however, afford States the opportunity to step back and methodically consider the most important missing pieces in the environmental law and policy arena (or, better yet, in the international field more generally) and the best manner and forum to address them. It is hoped that rigorous consideration will channel global political effort – a precious commodity – into the most environmentally beneficial outcomes.

²⁴*ibid* Principle 8.

²⁵Protocol to the Convention on the Prevention of Marine Pollution by Dumping of Wastes and Other Matter, 1972 (adopted 7 November 1996, entered into force 24 March 2006) 36 ILM 1 art 3(1).

²⁶See ICAO, 'Resolution A39-3, Consolidated Statement of Continuing ICAO Policies and Practices Related to Environmental Protection – Global Market-based Measure (MBM) Scheme' (2016) <https://www.icao.int/environmental-protection/Documents/Resolution_A39_3.pdf>.

²²Kigali Amendment to the Montreal Protocol on Substances that Deplete the Ozone Layer (adopted 15 October 2016, entered into force 1 January 2019) <<https://treaties.un.org/doc/Publication/CN/2016/CN.872.2016-Eng.pdf>>.

²³Rio Declaration on Environment and Development' in 'Report of the United Nations Conference on Environment and Development' UN Doc A/CONF.151/26 (vol I) (12 August 1992).

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